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United Kingdom Liaison Mission in Japan,
Tokyo.

FJ 10310/11

SECRET
119107/1259/51

8th October, 1951.

Dear Rob,

I have read your letter of 21st September about Japan's future relations with China and George Clutton's interim reply, 119/1232/51 of 27th September.

My short answer would be that to hold up ratification would irritate both the Japanese and the Americans and fail in its object. I have not yet had an opportunity to sound Japanese opinion, but from the correspondence which I have read and from what I have been told, I should judge that our original estimate of what the Japanese would like to do if they are left to be free agents in the matter, was correct. If they do something different, it will be because they have come to the conclusion that the pressure from the Americans cannot be resisted. They will expect us to understand and sympathise with their position, and since we cannot compensate them for any loss they might sustain by resisting American pressure, they will resent any delay in ratification as showing a lack of understanding.

If the Americans, as a result of internal politics, come to the conclusion that Japan must be forced into a treaty with Chiang Kai-shek, any delay in ratification on our part would, I imagine, not deter them. They could conceivably secure a majority and thereby the entry into force of the Treaty without us, which would put us in a very bad position. I still hope they will desist from putting pressure on the Japanese, and I shall seize any opportunity to stiffen the resistance of the latter. But as regards ratification, I remain of the opinion which I expressed before leaving London, namely that we should push forward ratification as soon as possible. I would hope that this could happen before Christmas, since, if it does not, I assume that the Treaty cannot be laid before Parliament until after the Christmas recess, which would presumably mean that ratification could not take place until the end of January or later. We do not, of course, know whether the Americans will hurry through ratification when the new Congress meets, or whether it will be allowed to drag on for several weeks. But there can be no harm in our ratifying before the Americans, and vis-a-vis the Japanese I think there would be some advantage in doing this.

When I paid my first call on Sebald, I seized the opportunity to go over the ground covered in our talks with Dulles in London last June. I explained that as I had been at sea for a month, and had no instructions,

I/

R. H. Scott, Esq., C.M.G., C.B.E.,
Foreign Office.

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I was speaking in a purely personal capacity. I went on to say that I thought it would be acutely embarrassing to us if, in spite of the understanding reached with Dulles, the Japanese were put under pressure to conclude a treaty with Chiang Kai-shek. While I thought opinion was divided in the Conservative Party about the wisdom of recognising the Peking Government, there was no real difference of opinion between the Parties at home about Chiang Kai-shek. The view was generally accepted that there were no possible prospects for his return to effective power in China.

Rather to my surprise, Sebald admitted that he, too, did not believe that Chiang Kai-shek could stage a return. He said that there was a fear that the Senate might refuse to ratify the Japanese Treaty unless Japan, before it came up for consideration, concluded some kind of an agreement with Chiang Kai-shek. To this I retorted that no one could object to Japan having some kind of a modus vivendi and it was readily understandable that the Japanese would wish to trade with Formosa. But a formal treaty would be quite another matter. Sebald said that Chiang Kai-shek had behaved very correctly over the recent establishment of a Trade Agency in Formosa, and had not tried to make any propaganda capital out of it in the official statements made on the subject. I said that I had noticed a number of statements in the Hong Kong press, obviously inspired from Nationalist sources, to the effect that Japan was about to conclude a treaty with Chiang Kai-shek.

There the matter rests for the moment. I hope I may have cleared up any misunderstandings which may have been in Sebald's mind on the subject, and it may be that he will pass on something of what I said. But I would urge that we should not allow our programme for ratification, whatever it may be, to be upset by this issue. We cannot, in the last resort, prevent Japan from concluding a treaty with Chiang Kai-shek if she is foolish enough to do so.

I am sending a copy of this letter to Washington.

Yours ever,

Bill Fenning.

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